

Attachment 1
U.S. Customs and Border Protection
Justification and Approval for Other Than Full and Open Competition
for contracts above the Simplified Acquisition Threshold (SAT)

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

1. Agency and Contracting Activity.

Department of Homeland Security/U.S. Customs and Border Protection (CBP), Office of Facilities & Asset Management (OFAM), Operational Support Facilities Directorate (OSF), Border Patrol and Air & Marine (BPAM) program management office (PMO) proposes to enter into a contract on a basis other than full and open competition.

2. Nature and/or description of the action being approved.

(a) CBP intends to procure Program, Project and Mission Support Services (PPMSS) on a sole-source basis until CBP can transition to a new, competitively awarded contract for these services.

(b) List the name and address of the proposed contractor(s):

Federal Missions Solutions, LLC
58 W Main St Ste B
Luray, VA 22835-1231

(c) Contract type: Firm Fixed-Price contract.

3. Description of Supplies/Services.

The requirement, PPMSS, is to provide professional support to CBP's OSF offices nationwide to conduct a full spectrum of program and project management support necessary to plan, evaluate, construct, sustain, maintain, and dispose of Program Management Office (PMO) projects and real property for Border Patrol and Air & Marine (BPAM).

Estimated total value (including options):

PPMSS		
Period		Total
Base Period	4 months	
Option Period 1	1 months	
TOTAL		

Note: The current task order, which was issued under OASIS (70B01C21F00000520), has a period of performance that ends on 31 March 2025.

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4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) implemented by Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements”. The interim contract will have a 4-month base period plus a 1-month option period.

5. Demonstration That the Nature of the Acquisition Requires Use of the Authority Cited.

Due to problems with the previous PPMSS competition, only one source is available in the interim to avoid a lapse in services while we re-solicit the requirement. CBP awarded PPMSS task order in September 2024, to Cherokee Nation Strategic Programs (CNSP). The award was protested by the incumbent contractor, FMS. In response to the protest, CBP took corrective action by canceling the award so it could reassess confidence ratings, the tradeoff analysis, and issue a new award decision. In November 2024, CBP awarded a second task order to CNSP. FMS protested the new award, which resulted in CBP terminating the newly awarded task order pending additional corrective action to investigate the spillage of proprietary information during the solicitation stage of the previous competition. The solicitation originally contemplated that CBP would award the PPMSS task order under the awardee’s OASIS Small Business (SB) IDIQ contract. However, the OASIS SB contract expired on December 19, 2025, during the protest period, making award of the anticipated task order impossible. To provide for interim services while a new solicitation is prepared and a new competition is held, it is necessary to award a bridge contract to the incumbent FMS.

Pursuant to this J&A, CBP intends to award a very short bridge contract with the incumbent contractor FMS, to allow for a re-compete of the PPMSS requirement. At this point in time, the only source that can provide the PPMSS services is the incumbent, FMS. FMS is responsible for performing these services currently, thus FMS would not need to onboard new employees or need a transition period to perform this requirement. In order to continue to meet the needs of CBP BPAM, a bridge contract of approximately four (4) months plus a 1-month option period is needed to prevent unacceptable delays in fulfilling the agency’s requirements for these critical services. Funds are currently available to support the bridge contract.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

FMS is uniquely positioned to meet CBP’s interim PPMSS requirements until CBP can successfully transition to the new competitively awarded contract. A notice will be publicized at www.SAM.gov, as required by FAR 5.203, and the contracting officer will review all potential sources for consideration.

7. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The contracting officer will be able to determine the anticipated pricing is fair and reasonable, based on (market research, acquisition history, etc.). (FAR Subpart 15.4).

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8. Description of Market Research.

This a sole source acquisition. Market research indicates that other companies may be able to perform the PPMSS contract after the requirement has been re-competed, but CBP's need to for a company to maintain the PPMSS requirement in the short term can only be satisfied by the incumbent, FMS. This acquisition is following a protest of award.

9. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

Security clearances are required of contractor personnel who perform the PPMSS services. At best, these background investigations typically take several weeks to several months. Awarding this short bridge contract to FMS removes the need to perform new background investigations (BI s) because current resources already have the necessary security clearance.

10. A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.

Multiple companies submitted quotes for the previous PPMSS effort. However, due to the expiration of the OASIS SB IDIQ contract and the need to resolicit, the incumbent, FMS, is the only vendor that has cleared personnel who can support this interim requirement immediately.

While sources have not specifically requested interest in this solicitation, there is sufficient interest in the new solicitation going forward that would indicate that when adequate time is available, the Government should receive offers to ensure a competitive range and pricing that can be deemed fair and reasonable based on the follow-on competition.

11. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

CBP will release a new competitive solicitation for the long-term requirement. However, the anticipated timeline for award of this requirement will push into late July of this year. The current contract is set to expire in March of this year. With a minimum of 7 months required to have a new vendor completely ready to assume responsibility for this requirement, CBP needs a four-month extension (with a one-month option period) of the existing award to ensure there is no gap in PPMSS services.

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12. Posting Requirement.

CBP will post this J&A on www.SAM.gov pursuant to FAR 6.305.

► **J&A CERTIFICATIONS**

13. REQUISITION/PROGRAM OFFICE CERTIFICATION

I certify that the foregoing justification is accurate, meets the Government's minimum needs and contains complete information necessary to support the action described in this document and the authority cited.

Office: CBP/ES/OFAM

Name: (Print): Abigail Stahl

Title: Chief, Communications and Workforce Strategy Branch

Signature/Date: _____

14. CONTRACTING OFFICER CERTIFICATION/APPROVAL*

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

Name (Print):

Contracting Officer _____

Signature/Date: _____

* In accordance with FAR 6.304(a)(1), CO certification of a J&A for a requirement not exceeding \$750,000 shall constitute approval of the J&A.

15. J&A APPROVALS

15. COMPETITION ADVOCATE (Per FAR 6.304(a)(2) - Over \$750,000 to \$15M)

☐ Approved

☐ Disapproved

Name (Print):

Competition Advocate

Signature/Date: _____